



File No.: EXP202308863

## RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access and Portability against B.B.B. (hereinafter, the respondent) without receiving the legally established response to their request. The claimant states that through an email dated 04/04/2023, addressed to \*\*\*EMAIL.1 (the respondent does not have a website to verify if this is the email provided for such purposes), they communicated the impossibility of attending the claimed center in the morning to view the evidence, requesting to be summoned in the afternoon, without receiving a response.

On the other hand, by email dated 12/04/2023, addressed to \*\*\*EMAIL.2, they requested that all personal data (which represent the psychological tests applied to their minor daughters and are included in the attached reports) of their two daughters be provided in a structured, commonly used, and machine-readable format, and that the portability of these be carried out to a specific Psychology Center. Their requests have not been addressed.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claimant's requests were satisfied. Consequently, on August 16, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, to present any allegations they deemed appropriate within ten working days, summarizing the following allegations:

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“...The claimant also knows that the paper tests they request cannot be delivered and that we are not even obliged to keep them, as the final result is sufficient. The final result is in their possession and has not been paid for. The claimant knows this because even the office to which we are requested to exchange information did not provide them at the time. -The reports we are asked to transfer to another office are already in their possession because it is the same claimant who delivers them (we remind that they have not paid for them). In summary, we cannot provide more information than what we have provided both in this file and in the previous file. We believe that what they are requesting makes no sense, basically because they have not paid anything; they owe for the last sessions and all reports (approximately €900). We understand that if they had paid everything they owe, they would be entitled to request documents, but that is not the case...”

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may formulate any allegations they deem appropriate.

Namely:

The economic matters alleged by Ms. B.B.B. are not subject to a portability claim. (...). The interested party requested access to the documentation from the center \*\*\*CENTRO.1 (B.B.B.) at a different time than that indicated by them and did not receive a response. 4. I do not understand what they are referring to. The interested party exercises the right recognized in Article 20 of the GDPR. If they

indeed do not have the right to data portability, it must be the AEPD that resolves that situation raised in the complaint of 16/05/2023. 5. That on April 12, 2023, the interested party requested via the provided email the portability of the psychopedagogical and/or psychological tests conducted from May 2021 to May 2022, for their daughters C.C.C. and D.D.D., in accordance with the provisions of Article 20 of the GDPR. Tests that have not been provided either to the interested party or to the other office indicated by them for portability.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

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II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by data subjects and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation for data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on August 16, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to

address any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

### Rights of Individuals Regarding Personal Data Protection

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The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obligated to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

### Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right shall be deemed granted if the controller provides remote access to the data, considering the request to be addressed (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing.

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that is being made of your data, the possibility of obtaining a copy of the personal data concerning you that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of

automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others; that is, the right of access shall be granted in such a way that it does not affect third-party data.

V

#### Right to data portability

The right to portability must be exercised in accordance with the provisions of Regulation (EU) 2016/679 of April 27, 2016, General Data Protection Regulation (GDPR). Thus, Recital 68 states the following:

"To further strengthen control over their own data, when the processing of personal data is carried out by automated means, data subjects who have provided personal data concerning them to a data controller should also be allowed to receive it in a structured, commonly used, machine-readable, and interoperable format, and to transmit it to another data controller. Data controllers should be encouraged to create interoperable formats that allow for data portability. This right should apply when the data subject has provided the personal data with their consent or when the processing is necessary for the performance of a contract. It should not apply when the processing has a legal basis other than consent or the contract. By its very nature, this right should not be exercised against controllers that process personal data in the performance of their public functions. Therefore, it should not apply when the processing of personal data is necessary for compliance with a legal obligation to which the controller is subject or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. The data subject's right to transmit or receive personal data concerning them should not oblige the controller to adopt or maintain technically compatible processing systems. When a specific set of personal data concerns more than one data subject, the right to receive such data should be understood without prejudice to the rights and freedoms of other data subjects in accordance with this Regulation. Furthermore, this right should not undermine the data subject's right to obtain the erasure of personal data and the limitations of that right set out in this Regulation, and in particular, it should not imply the erasure of personal data concerning the data subject that they have provided for the performance of a contract, to the extent and for the time that the personal data are necessary for the performance of that contract. The data subject shall have the right for the personal data to be...

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"they shall transmit directly from one data controller to another, when technically feasible."

For its part, Article 20 of the GDPR regarding the "Right to data portability" stipulates that:

"1. The data subject shall have the right to receive the personal data concerning them, which they have provided to a data controller, in a structured, commonly used, and machine-readable format, and to transmit it to another data controller without hindrance from the controller to whom they provided it, when:

- a) the processing is based on consent in accordance with Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), or on a contract in accordance with Article 6, paragraph 1, letter b), and
- b) the processing is carried out by automated means.

2. When exercising their right to data portability in accordance with paragraph 1, the data subject shall have the right to have the personal data transmitted directly from controller to controller when technically feasible.

3. The exercise of the right mentioned in paragraph 1 of this article shall be understood without prejudice to Article 17. Such a right shall not apply to processing that is necessary for compliance with a task carried out in the public interest or in the exercise of official authority vested in the data controller.

4. The right mentioned in paragraph 1 shall not adversely affect the rights and freedoms of others."

On the other hand, Article 17 of the LOPDGDD under the heading "Right to portability" establishes the following:

"The right to portability shall be exercised in accordance with the provisions of Article 20 of Regulation (EU) 2016/679."

VI

#### Conclusion

The claimant requests, on one hand, regarding the already recognized right of access, discrepancies regarding the schedule to access the personal data available to them in the consultation of the respondent; on the other hand, in relation to the requested right to portability, that they have not received a response.

We will begin by discussing the right of access and concluding that the viewing of the tests is available to the claimant, as both parties state, and the other personal data requested has already been provided according to the respondent.

Therefore, it remains for the parties to agree on the schedule once the respondent has been made aware of the email sent by the claimant through this procedure. All this without prejudice to the fact that the right of access has already been recognized by this Agency.

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And, regarding the right to data portability, all clarifications that the respondent party sends to this Agency during the period of allegations, considering that it should not attend to the right to portability as it understands that the requested information is already in the possession of the claimant party, must demonstrate that it is forwarding this information to the claimant party in order to respond explicitly to the claimant party as mandated by the GDPR.

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, and given that the request made obliges the data controller to provide an explicit response in any case using any means that justifies the receipt of the response, it is appropriate to uphold the claim that originated this procedure regarding the right to data portability for failing to demonstrate that the claimant party has been informed of the decision made.

And, to dismiss regarding the right of access, which has already been recognized, as it is only pending for the parties to agree on a schedule to view the tests.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. and to instruct B.B.B. with NIF \*\*\*NIF.1, to, within ten working days following the notification of this resolution, send to the claimant party a certification addressing the requested right to data portability or to deny it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: TO DISMISS the claim made by A.A.A. against B.B.B. regarding the right of access.

THIRD: TO NOTIFY this resolution to A.A.A. and B.B.B.

In accordance with the provisions established in article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions established in article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional

provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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